THE LETTERS OF THE RAMBAM

Hillul Hashem, Kiddush Hashem & the One Who Gave In

Letter on Martyrdom, Part 3

Source: Igrot HaRambam: *Iggeret HaShmad* / *Ma'amar Kiddush Hashem*, continued (Sections 1–3)

Shiur: Seventh class in the series on the Rambam's letters, given by Dayan Daniel Kada on Zoom, Tuesday 11 March 2025

These notes are based on the Sofer.ai transcript of the recording.

Recap: Section 1, When Must One Die?

The first half of the letter tore apart the rabbi who called anyone acknowledging Muhammad wicked. Then the Rambam began his own five-section answer:

	Three cardinal sins	Other sins: coercer wants **his own benefit**	Other sins: coercer wants **you to sin**, no *shmad*	Other sins: coercer wants **you to sin**, during *shmad*
Private	Die	Transgress	Transgress	**Die**
Public (ten Jews)	Die	Transgress	**Die**	**Die**

- "Mow my garden on Shabbat, I've got guests," even before a thousand Jews in a time of persecution: **mow it**.
- Ten Jews: **men or women**; children and the victim himself are debated.
- The Rambam seems to require it only for **active** transgression; that's debated.

Section 2: What Is Chillul Hashem?

Four kinds: **two for every Jew**, **two for sages and leaders**.

For every Jew

1. Sinning out of indifference. Not for pleasure or gain, and not even to rebel, but **because I just don't care**.

Example: you're offered a kosher and a non-kosher meal, **identical**. If the non-kosher is tastier and you take it, that's a sin, but "understandable." If they're the same and you take the non-

kosher **because it makes no difference to you**, because Hashem's word means nothing to you, **that's chillul Hashem.**

- **In front of ten Jews:** public chillul Hashem.
- **In front of even one other Jew:** a lesser, "**hidden**" (*beseter*) chillul Hashem.
- **Alone, just you and God:** a sin, but not called chillul Hashem.

2. Inviting suspicion. Not sinning, but acting so that people **suspect** you of sin.

והייתם נקיים מה' ומישראל (Matot): **and of Israel** be clean in the eyes of Hashem.

That's why the Sages made so many enactments: **mar'it ayin** and **chashad**. The classic case: **don't hang wet laundry on Shabbat**, though you washed it on Friday, because people will think you washed it today. (Whether *mar'it ayin* and *chashad* are one concept or two is a discussion for another time.)

The Gemara: when people say of someone, **"May God forgive him"**: he may have done nothing wrong, but he has **a bad name**; people are embarrassed to be his friend.

"Better to be a fool in people's eyes than in Hashem's," the Sages say, and when you're doing right and **not compromising yourself**, don't worry what people think. But **opening yourself to suspicion** is different.

For sages and leaders

The Rambam says **חכם**; the Rabbi reads it as anyone in a **public or communal position**: **אדם חשוב שאני**.

3. Permitted, but beneath your stature.

Rav (Yoma 86a): **"For someone like me, chillul Hashem is buying meat and not paying immediately."** For anyone else, "pay me tomorrow" is fine. For a sage, it isn't.

Similar examples in the Gemara: walking four cubits without Torah or tefillin. "You have to practise what you preach. More is expected of you."

4. A demeanour people don't want to be around. Not a specific act, just **general conduct**: business dealings without integrity, no **smile**, no warmth, not the finest character. "Fine for any of us; we're all working on ourselves. But not in that position."

People say: **"He studies Torah, and look how he behaves!"** ("If I had more time I'd explain exactly how to conduct business and speak to people.") He later did, in **Hilchot Deot**, which the class studied, more proof that this letter came before the Mishneh Torah.

The Sephardi ideal: "Some see a *chacham* as an **ivory tower**: he sits in his study, looks down on the people and issues rulings. **That was never the Sephardi approach.** The Sephardi *chacham* lives with the people. He's part of them." People should be **happy** in his presence.

The Opposite: Kiddush Hashem

קידוש השם הפך חילול השם

Chillul Hashem	Kiddush Hashem
1. Sinning out of indifference	**Doing a mitzvah purely because Hashem commanded it**, not for honour, wealth, recognition or even reward in Olam HaBa, **before others**
2. Inviting suspicion	Conduct that makes people **praise** you: **ישראל אשר בך אתפאר**. "Wow, that's a good Jew." Not acting *in order to* be praised, but as the result of how you live
3. A leader doing what's beneath him	A great person **refraining** even from permitted things unbefitting him
4. A leader people avoid	A leader whose presence people **enjoy**

"Hashem wanted to give Israel merit"

The Mishnah (end of Makkot): **רצה הקדוש ברוך הוא לזכות את ישראל, לפיכך הרבה להם תורה ומצוות**. The Rambam explains: with so many mitzvot, **at least one** will surely be done **purely**, for its own sake, and that alone earns Olam HaBa.

"It's very hard to get to the bottom of why we do what we do... When we stop to think, we might not be pleasantly surprised: social pressure, livelihood, honour. **לב יודע מרת נפשו**: everyone knows his own flaws."

The Severity of Chillul Hashem

Four ways it stands apart:

1	**inadvertent is like deliberate**. (In Pirkei Avot, learned a few months ago, the **אחד שוגג ואחד מזיד**: Rambam says deliberate is of course worse, but **both** count as chillul Hashem.) "I didn't realise people would suspect me." "I didn't realise it was beneath my stature." **But you did it**
2	**No credit**: **אין מקיפין בחילול השם**. Hashem isn't a shopkeeper who waits for payment; the consequence is **immediate**
3	**Done privately, punished publicly**
4	**Hardest to atone**: neither teshuvah, Yom Kippur nor suffering suffices; **only death**: **אם יכופר העון הזה לכם עד תמותון**

As Hilchot Teshuvah taught: ordinary negative mitzvot need teshuvah and Yom Kippur; karet and death-penalty sins add suffering; **chillul Hashem** needs all those **and death**.

But all this is only when the act was *willing*. "Inadvertent" still means you chose the act without thinking of its consequences. **Under compulsion is something else**, which comes next.

And just as chillul Hashem is grave, **kiddush Hashem is a great mitzvah, incumbent on every Jew**: **ונקדשתי בתוך בני ישראל, אני ה' מקדשכם, המוציא אתכם מארץ מצרים להיות לכם לאלהים**.

Questions

Mark: if I commit a chillul Hashem, realise, and then make a kiddush Hashem, does that offset it? **No.** "There's no offset." The consequence must still be paid; the kiddush Hashem earns its own reward. And "the reality is that someone like me has far more likely committed chillul Hashem than you have. The more communal a person, the more they have to be whiter than white." "Sometimes great rabbis come out with statements which shock you. Even if you can interpret them, **in your position you can't say something like that.**"

Doron: didn't we say chillul Hashem doesn't take a "bribe of mitzvot"? That's the Midrash on **אשר לא ישא פנים ולא יקח שוחד** (Ekev), not this letter, but "precisely the point." There's **no offsetting**. Mark's logic is more tempting here because kiddush Hashem is the direct opposite of chillul Hashem, unlike breaking Shabbat and giving charity, which are unrelated. **Still, no**: like **ברוך שאמר**, *who takes no bribe*.

Section 3: One Who Died, and One Who Gave In

One who gave his life

Whenever the Sages required martyrdom (the three sins; public coercion to sin; coercion to sin during *shmad*) **and he gave his life, he sanctified Hashem's name**; before ten Jews, **publicly**.

The **Ten Martyrs**, **Chanah and her seven sons**, all who died for Hashem.

> **אספו לי חסידי, כורתי בריתי עלי זבח**: "Gather to Me My pious ones, who made My covenant with sacrifice".
>
> **השבעתי אתכם בנות ירושלים בצבאות או באילות השדה**: in the Sages' reading, *I adjure you* even in the generation of *shmaa*; **בצבאות**, those who did My will and became My host; **באילות השדה**, whose blood was spilled like the blood of the deer on the altar.

One who merits this opportunity (the Rambam calls it an **opportunity**), **even if he committed terrible sins**, has **a share in Olam HaBa**, and **no one can stand in his place**: **הרוגי מלכות אין כל בריה יכולה לעמוד במחיצתן**, even simple people, like **the martyrs of Lod**.

One who should have died but didn't

If he **should** have given his life and **didn't**, and served idols, committed adultery, or even **murdered** ("shoot that Jew or I'll kill you": "we never have such a conflict," but suppose it), **he has done wrong** and **desecrated Hashem's name under duress**.

But he receives none of the seven punishments: the four court executions, karet, lashes, or death at the hands of Heaven.

Why? Hashem never punishes coercion.

	Example (Shabbat)	Consequence
מזיד, deliberate	Breaks Shabbat knowingly, with witnesses and warning	Stoning
שוגג, inadvertent	**Mows the lawn** or **drives**, not knowing it's Shabbat or that it's forbidden. A willed act with missing knowledge	A **korban** (in Temple times)
אונס / מתעסק, compelled or unintended	**Leans back and switches the light on** by accident; or at gunpoint	**Nothing**. Not even a korban

ולנערה לא תעשה דבר: "to the girl [who was assaulted] do nothing." So with **every** sin under duress: **אונס רחמנא פטריה**, the Torah exempts the coerced.

So, astonishingly: someone who **murdered** under duress, publicly, with witnesses, is **not** called wicked, and **is not disqualified as a witness**. "That's a riddle! How can it be?" Because he didn't **willingly** desecrate Hashem's name.

And the lesser sins? If even a death-penalty sin done under duress carries no punishment, **all the more so** a sin that carries only **lashes** (e.g. shaving with a razor).

What has he actually transgressed? A *lav*, a simple negative commandment, by failing to sanctify Hashem's name. "People think you get killed because you were meant to give up your life. **No.**"

The Midrash on **ונתתי אני את פני באיש ההוא**, "I will set My face against *that man*": "that man," not one acting under duress.

(The recording ends here, mid-section.)

Summary

1. **Chillul Hashem for everyone:** (1) sinning **out of indifference**, publicly before ten or "hidden" before one; (2) acting so people **suspect** you (*mar'it ayin*, *chashad*: no wet laundry on Shabbat).
2. **For sages and leaders:** (3) doing what's permitted but **beneath your stature** (Rav buying on credit); (4) a demeanour people **avoid**. The Sephardi *chacham* lives **among** the people, not in an ivory tower.
3. **Kiddush Hashem** is the mirror: mitzvot purely for Hashem; a life that makes people say "what a good Jew"; leaders above reproach and pleasant to be with.
4. **Chillul Hashem is uniquely severe**: even inadvertent, no credit, private becomes public, only death atones. **No offsetting**, not even by kiddush Hashem.
5. **One who dies for Hashem** has an exalted share in Olam HaBa, whatever his sins.
6. **One who should have died but gave in** (even to murder) receives **no punishment**, isn't called wicked, and remains a **valid witness**. He has transgressed only a **lav**.

Coming Up

Next week: the rest of Section 3; **Section 4**: how this persecution differs from others, and the Rambam's answer about acknowledging Muhammad; **Section 5**: how to live under *shmad*.

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